

26PR00319 Conservatorship of Nayeli Monserat Arzate Navarro

County: santa-barbara

Division: Conservatorship

Hearing date: 2026-08-19

Motion: Petition to Appoint Limited Conservator

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Tentative Ruling: Conservatorship of Nayeli Monserat Arzate Navarro

Case Number

26PR00319

Case Type

Conservatorship

Hearing Date / Time

Wed, 08/19/2026 - 09:30

Nature of Proceedings

Petition to Appoint Limited Conservator

Tentative Ruling

Probate Notes:

Appearances required.

The following defects must be corrected before the hearing:

Proof of Personal Service of Summons. In a conservatorship proceeding, jurisdiction is obtained through personal service of a citation and a copy of the petition for conservatorship upon the proposed conservatee, 15 days before the hearing. (Prob. Code, § 1824; Conservatorship of Jones (1986) 188 CA3d 306, 309.)

Proof of Service on Relatives of Proposed Conservatee. At least 15 days before the hearing on the petition for appointment of a conservator, notice of the time and place of the hearing shall be given by timely mailing service of the notice and copy of

the petition to the (1) spouse, if any, or registered domestic partner, if any, of the proposed conservatee, and (2) relatives named in the petition at their addresses stated in the petition. (Prob. Code, §1822.)

Capacity Declaration (GC-335) – No order adjudging that conservatee lacks capacity to give informed consent to medical treatment may be granted unless supported by a declaration executed by a licensed physician or licensed psychologist supporting the request. (Prob. Code, § 1890(c).)

Confidential Declaration on Medical Ability to Attend Hearing (GC-325) – As of January 1, 2025, the ability of the proposed conservatee to attend the hearing will be determined on evidence submitted on Judicial Counsel form GC-325. This form was adopted for mandatory use as of January 1, 2025. This form must be filed, or the proposed conservatee will be expected to attend the hearing.

Regional Center Report. When the proposed conservatee is a person with developmental disabilities, a report from the appropriate regional center is required (in this geographical area, the regional center is Tri-Counties). (Prob. C. § 1827.5.)

The proposed conservatee is expected to attend the hearing, unless a Confidential Declaration on Medical Ability to Attend Hearing (GC-325) is filed and shows a medical inability to attend. (Prob. Code, § 1825.) (Prob. Code, § 1825(a)(2)[medical inability].)

Judges

Judge Denise M. Hippach

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